

Shri Bijan Ghosh vs Smt. Sanghamitra Debroy on 21 January, 2025

Author: T. Amarnath Goud

Bench: T. Amarnath Goud

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HIGH COURT OF TRIPURA
AGARTALA

Mat. App. 08 of 2024

Shri Bijan Ghosh

.....Appellant(s)

Versus

Smt. Sanghamitra Debroy

.....Respondent(s)

For the Appellant(s) : Ms. Sarama Deb, Advocate. For the Respondent(s) : Mr. S. Lodh, Advocate.

Date of hearing & delivery
of judgment & order : 21.01.2025.

Whether fit for reporting : Yes/No

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HON'BLE MR. JUSTICE T. AMARNATH GOUD
HON'BLE MR. JUSTICE BISWAJIT PALIT
J U D G M E N T & O R D E R (ORAL)
[T. Amarnath Goud, J]

Heard Ms. S. Deb, learned counsel for appellant-

husband. Also heard Mr. S. Lodh, learned counsel for respondent- wife.

[2] This present appeal is filed under Section 28 of Hindu Marriage Act, 1955 read with Section 19 (ii) of Family Courts Act, 1984 by the appellant against the Judgment and decree dated 16.01.2024 passed in case no. T.S (Divorce) 40 of 2021 by the learned Judge, Family Court, Khowai Tripura.

[3] It is the case of the appellant-husband that he filed an application before the Ld. Judge, Family Court, Khowai, Tripura under section 13 (1) (ia), (ib) and (iii) of Hindu Marriage Act for getting dissolution of marital tie between him and the respondent- wife by a decree of divorce and the said case was numbered as TS (Divorce) 40/2021. The said application was dismissed by the Court below vide judgment and decree dated 16/01/2024 in the following manner:

".....O R D E R

7. In the result, it is ordered that the application filed by the petitioner, Sri. Bijan Ghosh against the respondent, Smt. Sanghamitra Deb Roy for a decree of divorce on the grounds as forwarded U/Ss-13(1) (ia), (ib) & (iii) of the Hindu Marriage Act is hereby dismissed.

As could be found from the results of the issues discussed, the petitioner shall continue to pay the amount of monthly maintenance to the respondent as per the concerned Order passed in connection with their Domestic Violence Case.

8. This Court further holds that the minor son of the parties shall remain under the care and custody of the petitioner.

9. Office shall prepare decree in terms of the above findings & Order and supply copies of the same to both the parties free of cost.

10. With the findings and directions above, the instant suit is hereby dismissed and disposed of on contest without cost....." [4] Aggrieved by the aforesaid judgment and decree dated 16/01/2024 passed by the learned Court below, the appellant herein filed the instant appeal seeking following reliefs:

"i). Admit this appeal;

ii). Issue notice upon the respondent;

iii). Call for records and after hearing he pleased to set aside the judgment and decree dated 16/01/2024 passed in case no. T.S (Divorce) 40 of 2021 passed by Sri. V.P Debbarma, the Ld. Judge, Family Court, Khowai Tripura.

AND

iv). Be pleased to dismiss the impugned judgment dated and decree dated 16/01/2024 and to dissolve the marital type between the Appellant and the Respondent by a decree of divorce.

v). To pass such other order/orders as to this Hon'ble Court may deem fit and proper....."

[5] Ms. S. Deb, learned counsel appearing for the appellant submits that the marriage between the appellant and the respondent has already been broken down irreparably as the respondent wilfully withdrew herself from the society of the appellant and is staying at her parental house since 2018 leaving behind her minor son and the appellant. She further submits that the appellant alone is looking after his minor son along with his other family responsibilities being a government employee. It is also contended that the minor son has to take treatment and therapy from time to time at a hospital at Agartala. She further contends that the respondent has no love and affection for her minor son nor has the sense of responsibility towards her matrimonial relationship as she is staying away from her son for more than 5 years. Learned counsel submits that the respondent never allowed the appellant to lead a peaceful conjugal life together, rather at times, he had to face her violent mood and activities including her abnormal behaviour. Learned counsel, therefore, urges this Court to set aside the impugned judgment and decree passed by the Court below on 16.01.2024 and to dissolve the marital tie between the parties by granting a decree of divorce.

[6] On the other hand, Mr. S. Lodh, learned counsel for the respondent-wife opposes the submission made on behalf of the appellant-husband. It is contended that the respondent was compelled to take shelter at her father's house who also has incurred all her expenditure. Learned counsel submits that since, the appellant is a government employee, it would be appropriate if the case is settled with cost of Rs.10 lakhs as permanent alimony to the respondent-wife to be awarded by the appellant-husband. [7] Heard learned counsel for the respective parties. Perused the record.

[8] Both the parties are present today. During the course of argument, it is contended on behalf of the appellant-husband that he is a government employee (teacher) and it is admitted by the respondent-wife that she is living separately from her husband for more than 5 years and her husband alone is looking after their minor child. Since both the parties have agreed to dissolve the marriage with permanent alimony and the appellant-husband is a government service holder looking after his minor child alone, this Court awards permanent alimony of Rs.7,50,000/- (rupees seven lakhs fifty thousands only) to be paid by the appellant-husband to the respondent-wife. The entire amount of Rs.7,50,000/- shall be paid by the appellant-husband within two months from today. Resultantly, the marriage between the parties is dissolved.

[9] This Court has also opined that since the minor child is a special child undergoing therapy, he needs love and affection of both his mother and father, he cannot be deprived of personal care and attention from his mother. As both the parties have mutually agreed to share the custody of the child, appellant on every Sunday evening at 7 P.M. will leave his son in the custody of his mother and on every Tuesday evening at 6 P.M., he will take his son with him from the custody of the mother.

With the above observation and direction, the instant appeal is allowed and accordingly, the same is disposed of. The personal appearance of the parties is dispensed with and the impugned order dated 16/01/2024 passed by the learned Court below is set aside. As a sequel, miscellaneous application(s), pending if any, shall also stand closed.

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